



**CITY OF DORAL  
CODE COMPLIANCE DEPARTMENT  
SPECIAL MAGISTRATE**

SM CASE NO: C \_\_\_\_\_ - \_\_\_\_\_ - \_\_\_\_\_

**REQUEST FOR MITIGATION/REDUCTION OF PENALTY/LIEN**

**INSTRUCTIONS:**

The property must be in compliance with the Special Magistrate Order for the case to be heard. Prior to completing, you should verify that there is an Affidavit of Compliance completed by the officer handling the case and include a copy of it with your submittal. Please fill out this form completely and be specific when writing your statements. Be advised that this form and any attachments will become public record. When the form is complete, please send the form via email to the following recipients:

Evelyn Freile, Special Magistrate Coordinator, [evelyn.freile@cityofdoral.com](mailto:evelyn.freile@cityofdoral.com)  
Danny Del Toro, Director of Code Compliance [danny.deltoro@cityofdoral.com](mailto:danny.deltoro@cityofdoral.com)

After our department receives and reviews the form, you will receive a written response back confirming the location, time, and date of the next available Special Magistrate Hearing. The officer also will issue a Notice to Appear Before the Special Magistrate that you will receive by hand delivery, posting, regular and/or certified mail. Should you have any questions, please contact the Code Compliance Department at 305-593-6680.

**INCOMPLETE FORMS WILL NOT BE ACCEPTED**

This Petition will be presented at the next regularly scheduled meeting, held on the third Thursday of each month (see schedule), and you need to be present to testify at the Special Magistrate Hearing.

This form must be submitted to the Code Compliance Department no less than 10 days prior to the Hearing in which the matter be heard.

Be advised that after a case is heard by the Special Magistrate, the City does not have any jurisdiction to make any decisions in regard that case, violation and fines imposed. Lien assessments recorded against the property are not negotiable and mitigation requests will not be accepted for those specific cases. The Special Magistrate will consider requests for Mitigations/Reduction of Penalty **ONLY ONCE FOR EACH CASE.**



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The Special Magistrate's decision will be based on the record of the case, this petition, along with any documents in support thereof, and the City's written response, and shall be its final action on the case. Appeals of the Special Magistrate's decision must be directed to the Circuit Court within 30 days of the Special Magistrate's Order.

Property Owners' Name: \_\_\_\_\_

Petitioner Name\* (if different from above) \_\_\_\_\_

**\* If Petitioner is not the owner of record, you MUST provide a Power of Attorney or other legal documentation as to your relationship to the property and authority to submit this petition. Copies of documents must be attached.**

Property Address: \_\_\_\_\_

Mailing Address (if different from above) \_\_\_\_\_

\_\_\_\_\_

Phone Number where you can be reached during the day: \_\_\_\_\_

E-mail Address: \_\_\_\_\_

Special Magistrate's Ordered Date of Compliance \_\_\_\_\_

Actual Date of Compliance \_\_\_\_\_

Officer's Name \_\_\_\_\_

Fine/lien amount \_\_\_\_\_

**EXTENUATING/OTHER CIRCUMSTANCES**

Was a permit required in order for you to complete the requirements set forth by the Special Magistrate? \_\_\_ yes \_\_\_ no.

If a permit was required, when did you first make application? \_\_\_\_\_

When was the permit issued? \_\_\_\_\_ Was the permit finalized? \_\_\_ yes \_\_\_ no.



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Final Inspection Date: \_\_\_\_\_

Were variances or approval from other departments or government agencies required?  
\_\_\_ yes \_\_\_ no.

Are there other legal proceedings pending? \_\_\_ yes \_\_\_ no.

If yes, provide documentation of proceedings including current status (eviction, bankruptcy, divorce, etc.) relate to code enforcement proceedings including timeframe for same. Attach additional documentation/sheets if required.

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Were there additional extenuating circumstances which related to your inability to comply with the requirements set forth by the Special Magistrate? \_\_\_ yes \_\_\_ no. If the answer is yes, please describe in detail (you may attach additional documentation or narrative if required):

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Your completed application will be presented to the Special Magistrate in its entirety, along with all supporting documentation. An Order by the Special Magistrate will be issued and provided to you.

**I hereby acknowledge that this application is complete as submitted.**

DATE: \_\_\_\_\_ Signed: \_\_\_\_\_

STATE OF: \_\_\_\_\_ Print Name: \_\_\_\_\_

COUNTY OF: \_\_\_\_\_

PERSONALLY appeared before me, the undersigned authority duly authorized to administer oaths and take acknowledgments, \_\_\_\_\_, who first being duly sworn, acknowledged before me that the information contained herein is true and correct. (He/She) (is/is not) personally known to me and have each produced a Florida Driver's License as identification and (did/did not) take an oath.

FDL# \_\_\_\_\_ My Commission Expires:

\_\_\_\_\_  
Notary Public

Date \_\_\_\_\_

NOTE: IF YOU ARE NOT ABLE TO COMMUNICATE, OR ARE NOT COMFORTABLE EXPRESSING YOURSELF, IN THE ENGLISH LANGUAGE, IT IS YOUR RESPONSIBILITY TO BRING AN ENGLISH-SPEAKING INTERPRETER TO THE HEARING. THIS PERSON MAY BE A FRIEND, RELATIVE OR SOMEONE ELSE TO INTERPRET FOR YOU DURING YOUR APPEARANCE AT THE HEARING. A MINOR CHILD CANNOT SERVE AS A VALID INTERPRETER. THE CITY OF DORAL DOES NOT PROVIDE INTERPRETATION SERVICES DURING ANY QUASI-JUDICIAL PROCEEDING.

NOTA: SI USTED NO ESTÁ EN CAPACIDAD DE COMUNICARSE, O NO SE SIENTE CÓMODO AL EXPRESARSE EN INGLÉS, ES DE SU RESPONSABILIDAD TRAER UN INTÉRPRETE DEL IDIOMA INGLÉS A LA AUDIENCIA. ESTA PERSONA PUEDE SER UN AMIGO, FAMILIAR O ALGUIEN QUE LE HAGA LA TRADUCCIÓN DURANTE SU COMPARECENCIA A LA AUDIENCIA. UN MENOR DE EDAD NO PUEDE SER INTÉRPRETE. LA CIUDAD DE DORAL NO SUMINISTRA SERVICIO DE TRADUCCIÓN DURANTE NINGÚN PROCEDIMIENTO DELANTE DE LOS MAGISTRADOS.